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LC003601

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JANUARY SESSION, A.D. 2026

(b) The attorney and healthcare provider shall be appointed by the presiding justice. The healthcare provider shall, where feasible, be selected from the same or a substantially similar specialty as the defendant healthcare provider, as selected by the superior court justice in a manner the justice determines fair and equitable. Where there are codefendants representing more than one

1 field of health care, the superior court justice shall determine in the justice's discretion who shall
2 represent the healthcare field on the tribunal.

3 **10-19.1-3. Tribunal hearing and standard of review.**

4 (a) The tribunal shall conduct a hearing at which the plaintiff shall present an offer of proof.

5 (b) The offer of proof shall consist of such evidence as would be admissible at trial.

6 (c) The tribunal shall determine whether the evidence presented, if properly substantiated,
7 is sufficient to raise a legitimate question of liability appropriate for judicial inquiry or whether the
8 plaintiff's case is merely an unfortunate medical result.

9 (d) The tribunal shall not resolve disputed issues of fact, assess credibility, or determine
10 damages.

11 **10-19.1-4. Tribunal finding for the plaintiff.**

12 If the tribunal determines that the plaintiff's offer of proof is sufficient, the action shall
13 proceed in the superior court in the normal course without further restriction.

14 **10-19.1-5. Tribunal finding for the defendant; Bond requirement.**

15 (a) If the tribunal determines that the plaintiff's offer of proof is insufficient, the plaintiff
16 may proceed with the action only upon filing a bond in the amount of six thousand dollars (\$6,000),
17 conditioned upon payment of the defendant's taxable costs if the plaintiff does not prevail.

18 (b) Upon a showing that the plaintiff is indigent or that the bond requirement would create
19 an undue hardship, the court may reduce the amount of the bond but may not eliminate the
20 requirement.

21 (c) Failure to post the required bond within thirty (30) days of the tribunal's finding shall
22 result in dismissal of the action without prejudice.

23 **10-19.1-6. Effect of tribunal proceedings.**

24 The finding of the tribunal shall be admissible as evidence at trial.

25 **10-19.1-7. Costs and compensation.**

26 (a) Tribunal members other than the presiding justice shall be compensated at a rate
27 established by the chief justice of the supreme court.

28 (b) Costs associated with tribunal proceedings shall be taxed as costs in the action at the
29 discretion of the court.

30 **10-19.1-8. Rules.**

31 The chief justice of the supreme court shall promulgate rules and fee schedules necessary
32 to implement the provisions of this chapter.

1 SECTION 2. This act shall take effect upon passage and shall apply to all medical
2 malpractice actions filed on or after January 1, 2027.

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EXPLANATION
BY THE LEGISLATIVE COUNCIL
OF
A N A C T
RELATING TO COURTS AND CIVIL PROCEDURE -- PROCEDURE IN PARTICULAR
ACTIONS -- RHODE ISLAND MEDICAL LIABILITY ACTIONS

- 1 This act would create a medical malpractice tribunal that would screen medical malpractice
- 2 actions before such actions may proceed in superior court.
- 3 This act would take effect upon passage and shall apply to all medical malpractice actions
- 4 filed on or after January 1, 2027.

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